

of action, including taking Raul's deposition and re-deposing the existing Plaintiffs, if necessary, on the new claims.

Denial Of The Individual Defendants' Joinder Motion

The Individual Defendants, Brian Perez and Michael Vu, filed a Joinder in Defendant Kaizen's Opposition on August 14, 2026, requesting that the Court deny Plaintiffs' motion for leave to amend. They argue that they are similarly situated to Kaizen, that Plaintiffs lacked diligence, and that their counsel was unavailable the week of August 24, 2026.

The Court DENIES/OVERRULES the Individual Defendants' Joinder to the extent they seek to block the filing of the SAC. As discussed above, California's liberal amendment policy strongly favors resolving cases on their merits, and there is no showing of "real prejudice" to any Defendant.

The fact that Individual Defendants' counsel had a scheduling conflict during the week of the hearing does not outweigh the strong policy in favor of amendment. The Court will ensure that the Individual Defendants are afforded a full opportunity to conduct discovery and file responsive pleadings.

1. Plaintiffs shall separately file and serve the proposed Second Amended Complaint in the form submitted as Exhibit A to the Levine Declaration within ten (10) calendar days of service of this Order.
2. Defendants shall file and serve responsive pleadings within thirty (30) days of service of the Second Amended Complaint.
3. The parties shall meet and confer regarding a schedule to conduct targeted discovery regarding Raul Doe and the new causes of action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505971	GUTIERREZ vs GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Motion for Attorney's Fees is granted in the amount of \$18,205.00.

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed.

[Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

According to counsel's records, Bryan Geoulla billed at \$450 for 29.1 hours, anticipates billing 2.8 hours, and Michael Josephson billed at \$350 hours for 25.1 hours. The hourly rates are reasonable.

At issue is the time spent. The court finds the following excessive and/or unreasonable:

- 9/27/25-9/28/25: Time spent on retaining the client is a cost of business. The court reduces the amount by .6 hours.
- 9/30/25-10/8/25: Time spent on reviewing documents and researching is excessive. The court reduces the amount by 2.0 hours.
- 10/9/25: Time spent on the summons, civil case over sheet, certificate of counsel, and filing instructions are clerical in nature. The court removes the 1.0 hour spent.
- 11/17/25, 12/3/25, 6/12/26: Reviewing emails from the process server is clerical. The court removes the .4 hour spent.
- 12/6/25: Time reviewing the answer is reduced by .2 hours as it is GM's form answer.
- 3/6/26: Scheduling the depo of Plaintiff is clerical work. The court removes the .6 hours.
- 3/12/26-3/13/26: Spending 3.3 hours on preparing for Plaintiff's deposition which was 1 hour is excessive. The court reduces the amount by 1.5 hours.
- 4/3/26-4/5/26: Spending 7.8 hours to prepare for Defendant's PMK deposition, which lasted 2.6 hours is excessive. The court reduces the amount by 3.0 hours.

Thus, the court awards Geoulla 24.9 at \$450 and Josephson 20.0 at \$350, for a total of \$18,205.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507004	IBARRA vs MARTINEZ	MOTION TO SET ASIDE DEFAULT, AND MOTION TO QUASH SERVICE OF SUMMONS

Tentative Ruling: Defendants Michael Martinez ("Martinez") and 27th Group Design & Develop LLC ("27th Group") Motion to Quash is granted; the entry of default is set aside.

Order to show cause is set for 10/27/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to timely file proof of service ALL defendants on complaint pursuant to CRC 3.110(b & f) as to PLAINTIFF AND RUSSELL RAD.

Quash Service Of Summons (C.C.P. § 418.10)

Under California Code of Civil Procedure § 418.10(a)(1), a defendant may file a motion to quash service of summons on the ground of lack of jurisdiction of the court over him or her. Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371) In the absence of valid service of summons, the court never acquires jurisdiction over the defendant, and any subsequent order or default entered is a nullity. C.C.P § 418.10(a).

A defendant is under no duty to respond in any way to a defectively served summons. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392). Furthermore, a defendant's actual knowledge of the action does not dispense with the statutory requirements for service of summons and is not alone sufficient to confer jurisdiction.

To be valid, a summons must be officially issued by the Court Clerk before it can be served (Code of Civil Procedure Section 418.10(a)(1) and *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371). Here, the process server claims he personally served Michael Martinez on December 19, 2025 (Exhibit 1 to the Declaration of John Molina, Esq.), yet the Summons was not issued by the Clerk until February 13, 2026 (Exhibit 3 to the Declaration of John Molina, Esq.). Service of an unissued summons is a jurisdictional defect that cannot establish personal jurisdiction (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371).

Under California Evidence Code Section 647, a registered process server's return creates a rebuttable presumption of proper service (pursuant to Evidence Code Section 647). However, a defendant's sworn declaration of non-service, if credited, is sufficient to rebut the presumption (*Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 940, n. 6).

Even if the Summons had been issued, the Court finds that Defendants have successfully rebutted the presumption of proper service established under California Evidence Code Section 647. Plaintiff relies on the return of registered process server Grigor Melkonyan, acting on behalf of ABC Legal Services, LLC, which asserts that personal service was made on Martinez on December 19, 2025, at 409 East 224th Street, Carson, CA. Under